IN THE COURT OF APPEALS OF THE STATE OF GEORGIA

Case No. A26A0002

Fictional Holdings, LLC,
Appellant,

v.

Sample County Board of Tax Assessors,
Appellee.

FICTIONAL SAMPLE. Appeal from the Superior Court of Sample County, State of Georgia
Trial court case no. 26-CV-0000

REPLY BRIEF OF APPELLANT

JANE Q. EXAMPLE
Example & Placeholder LLP
100 Sample Street, Suite 1
Atlanta, Georgia 30303

(555) 010-0000

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ARGUMENT AND CITATION OF AUTHORITY

I. The appellee does not answer the disclosure argument

The appellee says the appraisal was produced after the scheduling deadline. The record shows that it was served with the equalization request, long before discovery closed, and the scheduling order treats a report served before the deadline as satisfying the requirement. The appellee does not address that provision. It relies on correspondence that the appellant has already explained. Fictional placeholder citation: *Example v. Placeholder*, 000 Ga. App. 000 (2020).

The appellee also argues that it was not prejudiced in any way that matters. That argument concedes the point the appellant made: the appellee had the appraisal, did not seek a continuance, and identified no witness it would have called. A court may not exclude evidence as a sanction on a finding of prejudice that the record does not contain.

II. The appellee's sales data cannot support the finding alone

The appellee calls the zoning difference a matter of weight. But weight is for the trier of fact only when there is evidence to weigh. Here the only comparable that the appellee's assessor did not adjust is the one that the appellant identified as different, and the superior court's order does not explain how that transaction was adjusted. The appellee's brief does not supply the adjustment either.

1. The appellee offers no adjustment amount for the zoning difference.

2. The superior court did not discuss the income data, which the appellant's appraisal addressed.

III. The cost award falls with the judgment

The appellee concedes that the cost award depends on the judgment. The appellant's argument that the counterclaim was no longer pending when costs were assessed is a separate point, and it is properly before this Court because the order

awarding costs was entered after the counterclaim was withdrawn. The award should be vacated with the judgment.

CONCLUSION

For these reasons, the judgment should be reversed, and the case remanded for a new valuation hearing at which the appellant's appraisal is considered. In the alternative, the cost award should be vacated.

December 11, 2026

/s/ JANE Q. EXAMPLE
Counsel for Appellant
Georgia Bar No. 000000
jexample@example.invalid